



LETTER OF INTENT

Company : M/s. Prime Technologies LLC

P.O. Box : 26736, Dubai

Tel. No. : 04 3256555

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E-mail. : prime@primetechnologies.ae

Attention : Mr. Surendra D Meher

Project : Mina Rashid Developments – Buildings : Clear Point, Ocean point, Ocean Cove & Ocean Star- Dubai

Subject : Bus Bar System

Make : EAE

Origin : Turkey

Our Ref. No. :

Date : 18/02/25

Job Head : 101020001

Your Ref. : PT/4893/EAE/BB/05

Date : 15/02/25

Total Pages : 5+1+1 =7

Dear Sir,

We are pleased to issue this **Letter of Intent** as per the attached documents and with the following terms and conditions. The terms and conditions of this **Letter of Intent** and the documents attached hereto consolidates and supersedes all previous correspondence, communication and understandings.

This **Letter of Intent** will materialize into a Purchase Order (Confirmation of Order) or Sub Contract Agreement upon approval of your materials/ equipments/systems by the Consultant/Client's Representative/Relevant Authorities and our written confirmation to that effect. On the contrary, if for any reason should your materials/equipments/systems be disapproved and/or during the approval stage any changes are necessitated for which you will claim an extra amount, then this **Letter of Intent** will be deemed cancelled.

1) Scope of Works :

Engineering, Supply, Supervision on Installation, Testing and Commissioning & Handing over (to all the concerned parties) of Busbar Riser with all the required accessories, including the following (but not limited to) :

1.1) All your proposed materials, equipments & systems should comply fully with the project contract documents as listed in the attached "Annexures - A & B", EMAAR requirements and all relevant local authorities requirements.

1.2) Samples as required for the consultant's review and approval.

1.3) All relevant local authority approvals including fees..

1.4) Infrared Scanning (Thermo graph) test to be conducted as per specification & EMAAR requirements.

1.5) Preparation of Isometric drawings, As-Built Drawings, Technical / Material Submittals, Method Statements, O & M manuals, Asset register coding etc.

1.6) This project awarded to M/s Prime Technologies and the proposed Busbar system by M/s Prime Technologies shall be compliance with local authorities regulations and requirements and in case any additional materials or system required to comply the Client requirement and obtain the approval of the same shall be complied and provided by M/s Prime Technologies without any additional cost to the original agreed price.

1.7) M/s Verger Delporte had been awarded by the Main Contractor for the scope of the 4 Packages (Clear point, Ocean point, Ocean cove & Ocean star). Presently Clear point package is under construction, other 3 packages will be subject to the Client program of works which will be provided later stage. Warranty to be provided as per the contract documents starting from the TOC date for each package separately. The price for all 4 Packages to be kept valid till the completion of the project.





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2) **Exclusions** : As noted below.

- Supply & installation of conduits, tray, trunking,
- Any type of civil & builders works, electrical power points.

3) **Total Price** : Dhs. 3,300,000 (Dirhams Three Million Three Hundred Thousand Only), Delivered Duty Paid, Excluding VAT

Note: Present unit price based on LME 9000 USD/Ton, which will be adjusted during confirmation of order.

4) **Price Validity** : The unit prices to be valid till the completion of the project, irrespective of changes in the quantities and any changes in the currency exchange rates.

5) **Transport/ Freight** : As Required.

6) **Payment Terms** : By LC payable 120 days as follows :

- a) 95% of the total price from the date of delivery of materials to the site
- b) 5% of the total price after Successful testing & commissioning/ energization of busbar ~~and accepted by the Engineer~~

* Note: LC opening charges to be paid by the Verger & all other charges to be borne by the beneficiary.

7) **Performance Guarantee** :

- A Performance (Security Cheque) for 10% of the total price shall be provided along with first invoice and to be valid till completion of DLP period which is 1 year from the date of TOC.

8) **Delivery Terms** :

- Delivery Location : To our project site in Dubai
- Delivery Period : 10-12 weeks from the date of confirmation of order, actual delivery schedule will be provided along with the order as per site progress.
- Partial Delivery : Allowed
- Testing/ Commissioning Period : As per the program of site works / requirements

9) **Delay Damages**:

Delays damages capped with 10% of the total un delivered value shall be applied on M/s Prime Technologies incase they defaulted in progressing or completing the project in accordance with the agreed time of completion. The penalty amount for each day is Dhs 3,300 (Dirhams Three Thousand Three Hundred, per day).

. All the unacceptable materials/equipments identified by our QA/QC Engineer, Consultant and/or Client's Representative after delivery and during their receiving inspection will be automatically considered as not delivered. Such materials/equipments must be replaced immediately.

. Any damages/defects when discovered after delivery and during the receiving inspection ~~and/or during Installation/Testing & Commissioning/Warranty~~ period, a Non Conformance Notification sheet will be issued to you, wherein you will be instructed for the corrective action. You shall take immediate action to satisfy us at no cost to us.

. Any item short supplied shall be restocked by you immediately by the faster possible mode at your own risk and cost. Any additional expenses incurred by us to this effect will be debited from your account.

. In case of delay in the delivery of your materials and/or to complete your Works as per the agreed time period, we shall be entitled to procure the materials from alternative suppliers and/or engage other parties to carry out your incomplete Works with higher prices, then the difference in price and other additional costs will be deducted from your account with prior notice.

. In case due to site conditions, the due delivery of your materials/equipments is not possible, we will notify you of this matter in writing and request you to keep and store your materials/equipments in your yard free of charge to us for a period of one month.

10) **Guarantee / Warranty**:

- The Warranty/ Guarantee shall be as per project requirements from the date of Taking Over Certificate. Local support & spare stocking is included. All breakdown and maintenance shall be promptly attended on request. Parts found defective or failed during the warranty / guarantee period shall be replaced immediately.



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11) Project Contract Documents/ Authorities Requirements :

- **Your proposed Materials/ Equipments/ Systems should comply fully with the following Project Contract Documents and Relevant Authorities requirements :**

- | | |
|---|------------------------------------|
| - Specifications Ref. No. : As mentioned in the attached "Annexure - B" | - Relevant Authorities : |
| - Drawings Ref. No. : As mentioned in the attached "Annexure - B" | a) DEWA |
| - Addendums Ref. No. : As mentioned in the attached "Annexure - B" | b) Estidama (Pearl-2) Requirements |
| - Others (please specify) : As mentioned in the attached "Annexure - B" | |

• Full compliance to the Project Contract Documents including selection of appropriate materials/models is to be ensured unless specifically signed off as accepted deviation by us and the Consultant. No additional cost shall be paid to you to comply with the Project Contract Documents and/or Relevant Authorities requirements.

• In case of any error, omission, inconsistency, contradiction or discrepancy found from the above documents, you should promptly report to us for clarification and decision. Any materials/equipments delivered and work done/carried out by you prior to such clarifications and/or decision shall be at your own risk and the cost of any alteration or modification required thereto shall be borne by yourselves.

12) Submittals:

- **The below listed documents/ samples need to be submitted for approval by all the relevant parties :**

- a) Prequalification Documents: **1 Original & 1 Copy - To be send to Sharjah Office.**
- b) Technical/ Material Submittals & samples : **1 Original & 1 Copy To be sent to project site office, immediately upon approval of your prequalification documents**, incorporating the following (but not limited to) :

Technical/ Material Submittals & samples : 1 Original & sample board- To be sent to project site office, latest by 22/02/25, incorporating the following (but not limited to) :

- | | |
|---|---|
| - Compliance Statement | - Quality Certificate (s) |
| - Material Schedule | - Sample Test Certificate (s) |
| - Product Catalogue(s) | - Relevant Authority Approvals (where applicable) |
| - Selections & Production Drawings (where applicable) | - Previous Approvals |
| - List of Spare Parts (where applicable) | - Project Reference List |
| - Quality Assurance System | - Authorization to be the Dealer/ Distributor |
| - Inspection & Test Procedures | - Company Profile |

- c) Samples, as required.

- d) As Built Drawings

- **The below listed documents need to be submitted along with the delivery of materials/ equipments/ systems :**

- | | |
|--|---|
| - Certificate of Origin (issued by the chamber of commerce from origin country). | |
| - Original Delivery Note (s) | - Guarantee/ Warranty Certificate (s) (As required) |
| - Packing List / BOL / Airway Bill | - Factory Test Certificate (s)/ Reports, if applicable. |
| - Operation & Maintenance Manual | - Third Party Test Certificate (s), if applicable. |
| - Training Manual | |

- **The below listed documents need to be submitted for commercial procedures/ financial settlement :**

- | | |
|---|--|
| - Original Invoice (s) - To be sent to project site office. | - Detailed BOQ's with Unit Price Breakdown |
|---|--|

13) Other Terms & Conditions :

This project had been awarded shall be compliant with the full Contract documents/EMAAR requirements listed in annex B and also to comply with the relevant local authority requirements. M/s Prime Technologies shall be responsible to do the design, supply, supervision on installation, testing & commissioning of all the materials / system in accordance with the requirements of the Contract documents/EMAAR as listed in the documents regardless of the quantities listed in their quotation / BOQs. No variation shall be accepted to M/s Prime Technologies related to any additional materials need to be supplied and installed for the purpose of complying with the Contract documents/EMAAR requirements and local authority requirements.



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M/s Prime Technologies scope is to comply with the contract documents and the local authority requirements, in case of any requirements is listed in the Contract documents but not mandatory for the any local authorities then M/s Prime Technologies is obliged to supply and install these requirements in compliance with the contract documents regardless if required by the local authorities or not.

- . If as a result of an examination, inspection, measurement or testing of any equipment, material, system or design or workmanship is found to be defective or otherwise not in accordance with the project requirements, we may reject the equipment, material, system or design or workmanship by notifying you with reasons. You shall then promptly rectify the defect and ensure that the rectified item complies with the project requirements. If retesting of this equipment, material, system or design or workmanship is required, then the test shall be repeated under the same terms and conditions. Any additional cost incurred by us due to above will be borne by yourselves.
- . Manufacturer and Supplier to ensure the offered materials/ equipments/ systems are fit for the purpose and will perform intended function in chosen environment. Any discrepancy or pre-assumption should be documented appropriately and signed off prior to delivery of materials/ equipments.
- . You shall strictly observe and comply with all health, safety, security, environmental rules of regulations as per the Project Contract Documents and/or Relevant Authorities requirements. There will be fines for breach of mentioned rules of regulations as a result of your actions and the same will be charged to your account.
- It is your responsibility to supply all required components to provide a complete operable system meeting the project requirements and to the satisfaction of all concerned parties.
- A qualified and capable representative should be deputed/ available at site during installation, testing & commissioning of the equipments/ systems as per the Project Contract Documents and relevant authorities requirements.
- Installation shall be certified by you upon completion of installation and prior to commissioning.
- Necessary site co-ordination, site survey, site measurements to be done by your suitably qualified personnel, as required.
- No extra cost shall be paid to you to comply to project documents/drawings/specifications/ EMAAR requirements and local authorities requirements.
- All your materials are subject to factory inspection/ test labs as required/ instructed by the Consultant/ Client's Representative prior to shipment.
- All proposed materials /equipments (make, origin, specifications, ...etc) are subjected to comply with project documents and Consultant's /Client approval.
- All your delivered materials/equipment should have valid local authorities approvals until the end of Defects Liability period.
- All panel/equipment/component should have proper name plates as per project requirements and inline with approval/specification.
- Necessary training for the operation, maintenance, control, safety, trouble shooting, etc. of your materials/ equipments/ systems to be provided to all the relevant parties by your qualified personnel, as required/ instructed by the Consultant/ Client's Representative.

14) Settlement of Disputes :

. In case of any disputes or problems that arise between the two parties regarding this Confirmation of Order (when issued), whether during the course of work or after the work is completed, the matter will be settled amicably. If both parties fail to reach an amicable settlement, then the matter of dispute shall be referred to the court for a decision and the laws of the Emirates will be the Governing court. The laws of the Emirates shall only apply and the jurisdiction of this agreement is the courts of Abu Dhabi where works are executed in the United Arab Emirates.

15) Undertaking :

- . We agree that Verger Delporte shall be entitled to deduct with just cause from or against any monies due to you any sums which you shall be liable to pay us provided such liability is incurred in connection with this Purchase Order, having given such notice of deduction in writing.
 - . You will not take any work on this project for the subject materials/ equipments directly or indirectly from the end user till our contract work is completed including the maintenance period and handing over of our contract liabilities are completed.
- In all events and to the extent permitted by law, the Vendor's total liability arising under or in connection with this Letter of Intent shall be capped up to the total price.



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. You will not deal with the Main Contractor or the Client for your subject materials/equipments on this project under any circumstances except after receiving written approval from ourselves. Any maintenance or repair works or supply of spare parts will not be supplied to anybody else except to us by you/ your principal till the end of our defects notification period.

We require your unconditional acceptance for this **Letter of Intent** in the space provided hereunder within two working days of receipt of this **Letter of Intent** by return fax to 02-4465540. Failure to do so, this **Letter of Intent** will be deemed final & accepted by yourselves.

Thanking you,

Yours' truly,
for Verger Delporte U.A.E Ltd

Designation : Contracting Division Manager

Name : Mr. Andreas Constantinou

Signature :

Designation : Finance Manager

Name : Mr. Dharmesh

Signature :

Designation : General Manager

Name : Mr. A.M. Antoniadis

Signature :

Attachments :

- a) Annexure - A (1 page)
- b) List of Project Documents for Low Current System in "Annexure-B" (1 page).

Vendor's Acknowledgement

We the undersigned, have read, understood and agree to execute this Order (upon its Confirmation) in accordance with the terms and conditions of this Letter of Intent.

for

Mr. Alok Dube



05-03-2024

Name of the Authorised Signatory

Signature

Date

Company Stamp

"ANNEXURE - B"

Project : Mina Rashid Developments – Buildings : Clear Point, Ocean point, Ocean Cove & Ocean Star

Subject : List of Project Documents for Busbar Riser

The following Project Documents are enclosed in a link.

S NO	Description	
<u>A</u>	<u>TENDER DOCUMENTS INCLUDES :</u>	
A1	ELECTRICAL & MECHANICAL SPECIFICATION	All documents in pCloud & We transfer link Please refer "Annexure-B" for details
A2	ELECTRICAL & MECHANICAL DRAWINGS	
A3	TENDER & POST TENDER ADDENDUMS	
A4	ARCHITECTURAL & STRUCTURAL DRAWINGS	
A5	SCHEDULE OF PROJECT REQUIREMENTS	
A6	CONTRACT BOQ'S	
<u>B</u>	<u>IFC DRAWINGS FOR CLEAR POINT BUILDINGS</u>	
<u>C</u>	<u>VENDOR LIST - As per Emmar acceptable Vendors</u>	

Imp. Notes :

- 1) Above list of folders are for guidance only. However, all the documents & files enclosed in the Link shall be considered to fulfill the project requirements.
- 2) Project details :

Clear Point : (B+G+10 Floors) with 3 Buildings

Ocean Cove : (B+G+9 Floors) with 2 Buildings

Ocean Star : (B+G+6 Floors) with 2 Buildings

Ocean Point : (B+G+8 Floors) with 2 Buildings
- 3) Your scope should include Design/Engineering, Necessary Calculations, Supply of Materials, supervision, Testing, Commissioning, Relevant Local Authority Approvals, etc. & Handing Over (to all the concerned parties) of Busbar Riser inline with the aforementioned project documents, applicable local and international fire & life safety codes/standards/regulations and complying with the latest requirements of all relevant local authorities (DEWA).
- 4) Interface with other system as required / as per the Contract documents. IP rating of all the panels to meet the site requirements and inline with DEWA requirements.
- 5) All the materials/makes (brands) shall be as per Emmar approved and should be approved by the authority having jurisdiction. (Kindly mention the Make & Origin of all your proposed materials, in your quotation).
- 6) Detailed BOQ's & the unit price breakdown for all the materials / items should be provided along with receipt of LOI.
- 7) FAT / Factory Visits, deemed as necessary.
- 8) Preparation of GA drawings, Material/Technical Submittals, Method Statement, O & M manuals, etc.
- 9) All relevant Local Authority approvals.
- 10) Kindly send us your preliminary compliance statement to the above specifications, along with your quotation.
- 11) Warranty for all the materials / systems should commence from the date of taking over certificate.

Note : Exclusions, if any, should be clearly notified in your quotation.



Mina Rashid Developments – Buildings : Clear Point, Ocean point, Ocean Cove & Ocean Star- Dubai

Subject: Bus Bar System

Make: EAE Turkey.

Annexure -A

SI No	Description	Total Amount
A)	Bus Bar System for Clear Point (BB-01 1000A, BB-02 1600A BB-03 1600A, BB-04 1000A, BB-05 2500A & BB-06 2500A)	1,800,000.00
B)	Bus Bar System for Ocean Cove (BB1-B1-E1 1000A, BB2 B1-E2 1000A & BB3-B2-R 1600A,)	500,000.00
C)	Bus Bar System for Ocean Point (BB-B01-1 1600A, BB-B02 -1 800A (1000A) & BB-B02-2 800A (1000A))	600,000.00
D)	Bus Bar System for Ocean Star (BB-B01 800A (1000A) & BB-B02 -1 1600A	400,000.00
	Net Total in AED	3,300,000.00